

KMVTECH EDUCATION

HRL1 · Module 4

Uganda Bill of Rights

Lesson: Constitutional rights

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

Chapter Four of the 1995 Constitution is Uganda's Bill of Rights. It protects civil, political, economic, social and cultural rights and contains special provisions for vulnerable groups. Article 20 affirms that fundamental rights are inherent and not granted by the State.

Key rights include life, liberty, equality and non-discrimination, freedom of expression, assembly, association, property, fair hearing, and various socio-economic rights. Article 45 confirms that the catalogue is not exhaustive.

Limitation is governed by Article 43 (public interest, not beyond what is acceptable in a free and democratic society) and specific clauses. Derogation in emergencies is constrained by Article 46 and non-derogable rights.

- The Constitution is supreme; inconsistent laws and acts are void to the extent of the inconsistency (Art. 2).

2. DETAILED RULES AND APPLICATION

Example: a challenge to a statute limiting expression must pass the Article 43 test of necessity and proportionality in a free and democratic society.

Start every domestic human-rights argument with the precise constitutional provision and the limitation clause that applies.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Ugandan courts have developed a rich jurisprudence on fair hearing, property, equality and socio-economic rights. Public-interest litigation and the Human Rights Commission provide additional avenues.

Exam trap: applying a general 'public interest' override without the structured Article 43 analysis, or ignoring non-derogable rights in emergency settings.

Method: identify the right → quote the constitutional text → apply any internal qualifiers → test limitation under Art. 43 or specific clause → consider remedies under Art. 50.

This is the core domestic map for all later enforcement and selected-rights modules.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. Where is the Bill of Rights located?
2. What does Article 20 affirm?
3. State the essence of the Article 43 limitation test.
4. Name three non-derogable or specially protected rights.
5. What is the effect of Article 2?
6. Why cite the precise constitutional article?

Exam tip: Constitution first; limitation analysis second.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.